> *has been defined in the Oxford Dictionary to mean 'a collection of individuals classed together under the same name: a religious sect or body having a common faith and Organisation and designated by a distinctive name'*. It is well known that the practice of setting up Maths as centres of the logical teaching was started by Shri Sankaracharya and was followed by various teachers since then. After Sankara, came a galaxy of religious teachers and philosophers who founded the different sects and sub-sects of the Hindu religion that we find in India at the present day. Each one of such sects or sub-sects can certainly be balled a religious denomination, as it is designated by a distinctive name—in many cases it is the name of the founder—and has a common faith and common spiritual organization. The followers of Ramanuja, who are known by the name of Shri Vaishnavas, undoubtedly constitute a religious denomination; and so do the followers of Madhwacharya and other religious teachers. It is a fact well established by tradition that the eight Udipi Maths were founded by Madhwacharya himself and the trustees and the beneficiaries of these Maths profess to be followers of that teacher. The High Court has found that the Math in question is in charge of the Sivalli Brahmins who constitute a section of the followers of Madhwacharya. As article 26 contemplates not merely a religious denomination but also a section thereof, the Math or the spiritual fraternity represented by it can legitimately come within the purview of this article [emphasis added].

There are multiple problems with this excerpt, the first of which is that, as opposed to using Indic commentaries to understand the contours of a 'sampradaya' from a Dharmic perspective in the context of a Dharmic institution, the Supreme Court chose to rely on the Oxford Dictionary. This is because the language in which the Constitution is understood and interpreted is the British coloniser's native tongue, English. Second, the Oxford Dictionary of the 1950s surely could not have been expected to reflect anything other than the Christian understanding of things, in particular, religious concepts. Therefore, while it could be argued that the Supreme Court was only operating within the rules of interpretation accepted in English law (which is its standard practice even today), the fact is that owing to the Christian backdrop of the coloniser's lexicon, the Court unconsciously applied a manifestly Christian concept and definition of